

FOURTH JUDICIAL DISTRICT - PROVO DISTRICT COURT
UTAH COUNTY, STATE OF UTAH

MARIA SANCHES vs. JANENE THORPE

CASE NUMBER 210400815 Civil Stalking

**** PRIVATE ****

CURRENT ASSIGNED JUDGE
KASEY L WRIGHT

PARTIES

Plaintiff - MARIA SANCHES
Represented by: BRIXTON HAKES

Defendant - JANENE THORPE

ACCOUNT SUMMARY

Total Revenue Amount Due:	256.50
Amount Paid:	256.50
Amount Credit:	0.00
Balance:	0.00
Bail/Cash Bonds Amount Due:	300.00
Amount Paid:	0.00
Amount Credit:	300.00
Balance:	0.00
Trust Totals:	
Trust Due:	300.00
Amount Paid:	300.00
Amount Credit:	0.00
Trust Balance Due:	0.00

REVENUE DETAIL - TYPE: APPEAL

Amount Due:	240.00
Amount Paid:	240.00
Amount Credit:	0.00
Balance:	0.00

BAIL/CASH BOND DETAIL - TYPE: CASH BOND: Appeals

Posted By:	CHRISTOPHER THORPE
Posted:	300.00
Forfeited:	0.00
Exonerated:	300.00
Balance:	0.00

TRUST DETAIL

Trust Description:	Bail/Bond Refund
Recipient:	CHRISTOPHER THORPE
Amount Due:	300.00
Paid In:	300.00
Paid Out:	300.00

REVENUE DETAIL - TYPE: CERTIFIED COPIES

Amount Due:	4.50
Amount Paid:	4.50
Amount Credit:	0.00
Balance:	0.00

REVENUE DETAIL - TYPE: CERTIFICATION	
Amount Due:	12.00
Amount Paid:	12.00
Amount Credit:	0.00
Balance:	0.00

CASE NOTE

PROCEEDINGS

DATE	SEQ	EVENT
06-16-2021	1	**** PRIVATE **** Filed: Complaint Request for Civil Stalking Injunction
06-16-2021	2	**** PRIVATE **** Filed: Order (Proposed) Ex Parte Order Civil Stalking Injunction - Janene Thorpe
06-16-2021		**** PRIVATE **** Filed: Petition
06-16-2021		Judge ROBERT LUND assigned.
06-16-2021		Note: discovery tier set to Exempt
06-16-2021	3	**** PRIVATE **** Filed: Return of Electronic Notification
06-18-2021	4	Filed order: Order Ex Parte Order Civil Stalking Injunction - Janene Thorpe Judge ROBERT LUND Signed June 18, 2021
06-18-2021	5	**** PRIVATE **** Filed: Return of Electronic Notification
06-18-2021	6	Filed protective order: Temporary Civil Stalking Injunction Judge ROBERT LUND Signed June 18, 2021
06-18-2021		Case Disposition is Granted Disposition Judge is ROBERT LUND
06-19-2021	7	**** PRIVATE **** Filed: Return of Electronic Notification
06-21-2021	8	**** PRIVATE **** Filed: Motion Ex Parte Motion for Alternative Service
06-21-2021	10	**** PRIVATE **** Filed: Order (Proposed) Re: Ex Parte Motion for Alternative Service
06-21-2021	9	**** PRIVATE **** Filed: Request/Notice to Submit Re: Ex Parte Motion for Alternative Service
06-21-2021	11	**** PRIVATE **** Filed: Return of Electronic Notification
06-23-2021	12	Filed order: Order Re: Ex Parte Motion for Alternative Service Judge ROBERT LUND Signed June 23, 2021
06-23-2021	13	**** PRIVATE **** Filed: Return of Electronic Notification
06-23-2021	14	**** PRIVATE **** Filed return: Return of Service upon FACEBOOK SERVICE for

06-23-2021 15 **** PRIVATE **** Filed: Return of Electronic Notification

07-02-2021 19 **** PRIVATE **** Filed: Request for Hearing

07-02-2021 16 **** PRIVATE **** Filed: Appearance of Counsel/Notice of Limited Appearance

07-02-2021 17 **** PRIVATE **** Filed: Objection to Ex Parte Civil Stalking Injunction

07-02-2021 18 **** PRIVATE **** Filed: Return of Electronic Notification

07-02-2021 Note: DEF Email Address changed to cjbhtc89@gmail.com

07-02-2021 Note: Envelope left at court by attorney's office given to respondent.

07-06-2021 20 **** PRIVATE **** Filed: Request for Hearing

07-06-2021 NOTICE for Case 210400815 ID 21948491

Judge: ROBERT LUND

STALKING INJUNCTION HEARING is scheduled.

Date: 07/13/2021

Time: 03:00 p.m.

Before Judge: ROBERT LUND

This hearing will not take place at the courthouse. It will be conducted remotely.

Contact the court to provide your current email address.

If you do not have access to a phone or other electronic device to appear remotely, notify the court.

07-06-2021 STALKING INJUNCTION HEARING scheduled on July 13, 2021 at 03:00 PM in 6th Fl, Courtroom 6B with Judge ROBERT LUND

07-06-2021 21 Filed: Notice for Case 210400815 SK: Judge ROBERT LUND

07-07-2021 22 **** PRIVATE **** Filed: Return of Electronic Notification

07-19-2021 CIVIL STALKING INJUNCTION scheduled on July 20, 2021 at 03:15 PM in 6th Fl, Courtroom 6B with Judge ROBERT LUND

07-20-2021 23 **** PRIVATE **** Filed: Return of Electronic Notification

07-20-2021 24 **** PRIVATE **** Filed: Exhibit List: Defendants Rebuttal Exhibits

07-20-2021 25 **** PRIVATE **** Filed: Exhibit List: Defendants Rebuttal Exhibits

07-20-2021 26 **** PRIVATE **** Filed: Exhibit List: Defendants Rebuttal Exhibits

07-20-2021 27 **** PRIVATE **** Filed: Return of Electronic Notification

07-20-2021 Cancelled: EVIDENTIARY HEARING scheduled on August 16, 2021 at 01:00 PM in 6th Fl, Courtroom 6B with Judge ROBERT LUND

07-20-2021 Minute Entry - EVIDENTIARY HEARING

Judge: ROBERT LUND

PRESENT

Defendant(s): JANENE THORPE

Plaintiff's Attorney(s): BRIXTON HAKES

Defendant's Attorney(s): BRUCE NELSON

Protected Person: MARIA SANCHES

Protected Person: EDWARD SANCHES

Clerk: chrislc

Tape Number: 6B Webex Tape Count: 3:22-3:56

HEARING

This matter comes before the court for an evidentiary hearing on the existing temporary civil stalking injunction.

3:27 Mr. Hakes calls Ms. Sanches to testify. Ms. Sanches is placed under oath. Witnesses are moved to the WebEx lobby during testimony.

3:41 The court is in recess.

3:42 Court resumes. Mr. Hakes offers video Exhibit A. Technical difficulties occur and Mr. Hakes requests a continuance. Mr. Nelson stipulates to the continuance and requests the temporary civil stalking injunction be dismissed in the interim. The court denies the motion. Mr. Hakes requests the hearing take place in person. The court denies the request.

3:56 The court is in recess.

EVIDENTIARY HEARING is scheduled.

Date: 08/16/2021

Time: 01:00 p.m.

Before Judge: ROBERT LUND

This hearing will not take place at the courthouse. It will be conducted remotely.

Contact the court to provide your current email address.

If you do not have access to a phone or other electronic device to appear remotely, notify the court.

07-21-2021 28

**** PRIVATE **** Filed: Return of Electronic Notification

07-22-2021

NOTICE for Case 210400815 ID 21998003

07-22-2021

NOTICE for Case 210400815 ID 21998004

Date:

The reason for the change is Correct calendar

07-22-2021

Modified: EVIDENTIARY HEARING scheduled on August 16, 2021 at 01:00 PM in 6th Fl, Courtroom 6B with Judge ROBERT LUND

Reason: Correct calendar

07-22-2021

CIVIL STALKING INJUNCTION scheduled on August 16, 2021 at 01:00 PM in 6th Fl, Courtroom 6B with Judge ROBERT LUND

07-23-2021 29

**** PRIVATE **** Filed: Return of Electronic Notification

08-16-2021

Minute Entry - STALKING INJUNCTION HEARING

Judge: ROBERT LUND

PRESENT

Plaintiff(s): MARIA SANCHES

Defendant(s): JANENE THORPE

Plaintiff's Attorney(s): BRIXTON HAKES

Defendant's Attorney(s): BRUCE NELSON

Protected Person: EDWARD SANCHES

Protected Person: RYDER SANCHES

Protected Person: IAN SANCHES

Protected Person: TAYA SANCHES

Protected Person: NOAH SANCHES

Clerk: danakar

Audio

Tape Number: 6B Webex Tape Count: 1:04-5:46
HEARING

This matter comes before the court for a stalking injunction hearing. Mr. Hakes addresses the status of the case.

1:19 Mr. Hakes calls Mr. Sanches to testify he is sworn and questioned by Mr. Hakes.

1:30 Exhibit A is presented (technical difficulties ensue)

1:49 Exhibit A is offered and received.

1:50 Mr. Hakes continues questioning Mr. Sanches.

1:51 Mr. Nelson questions the exhibit.

2:21 Exhibits J and O are offered and received.

2:24 Mr. Hakes continues questioning Mr. Sanches.

2:27 Exhibit R is offered and received.

2:30 Mr. Hakes continues questioning Mr. Sanches.

2:43 Mr. Nelson questions the exhibit.

2:45 Mr. Hakes continues questioning Mr. Sanches.

2:58 Mr. Nelson questions Mr. Sanches as to Exhibit R.

2:59 Mr. Hakes continues questioning Mr. Sanches.

3:00 Mr. Nelson cross-examines the witness. The court questions the witness. Mr. Nelson further questions the witness.

3:08 Mr. Hakes calls Ms. Sanches to testify she is sworn and questioned by Mr. Hakes.

3:11 Court takes a brief recess.

3:31 Court resumes. Mr. Hakes continues questioning Ms. Sanches

3:35 Exhibit Z is offered and received.

3:36 Mr. Hakes continues questioning Ms. Sanches.

3:53 Exhibit O is offered and received.

4:04 Mr. Hakes continues questioning Ms. Sanches.

4:19 Mr. Nelson cross-examines the witness. The court questions the witness. Mr. Nelson further questions the witness.

4:23 Mr. Hakes poses clarifying questions to Ms. Sanches.

4:27 Mr. Nelson recross on Ms. Sanches.

4:29 The court is in recess.

4:36 Court Resumes. Mr. Hakes calls Taya Sanches. She is questioned by the court.

4:47 Mr. Hakes addresses the status of the witnesses yet to be called. Mr. Hakes rests his case.

4:51 Mr. Nelson calls Mr. Thorpe he is sworn and questioned.

4:58 Mr. Hakes cross-examines the witness. The court questions the witness. Mr. Hakes further questions the witness. The court takes judicial notice of Utah County Justice Court Case 211100905.

5:20 Mr. Nelson responds and offers exhibits (still photographs). Mr. Nelson rests.

5:25 Mr. Hakes gives closing statements.

5:34 Mr. Nelson gives closing statements.

5:42 After hearing from counsel the court grants all three civil stalking injunctions. Mr. Hakes is to prepare the appropriate orders.

5:46 The court is in recess.

08-25-2021	30	**** PRIVATE **** Filed: Order (Proposed) Permanent Stalking Injunction
08-25-2021	31	**** PRIVATE **** Filed: Return of Electronic Notification
08-25-2021	32	**** PRIVATE **** Filed: Request/Notice to Submit
08-25-2021	33	**** PRIVATE **** Filed: Return of Electronic Notification
08-26-2021	34	Filed order: Order Permanent Stalking Injunction Judge ROBERT LUND Signed August 26, 2021
08-26-2021	35	**** PRIVATE **** Filed: Return of Electronic Notification
08-30-2021	36	Filed protective order: Civil Stalking Injunction Judge ROBERT LUND Signed August 30, 2021
08-31-2021	37	**** PRIVATE **** Filed: Return of Electronic Notification
09-21-2021	38	**** PRIVATE **** Filed: Motion to Withdraw
09-21-2021	39	**** PRIVATE **** Filed: Order (Proposed): Order Granting Motion to Withdraw
09-21-2021	40	**** PRIVATE **** Filed: Return of Electronic Notification
09-22-2021	41	Filed order: Order: Order Granting Motion to Withdraw Judge ROBERT LUND Signed September 22, 2021
09-22-2021	42	**** PRIVATE **** Filed: Return of Electronic Notification
09-23-2021	43	**** PRIVATE **** Filed: Notice of Appeal
09-23-2021		Fee Account created Total Due: 240.00
09-23-2021		APPEAL Payment Received: 240.00
		Note: Code Description: APPEAL
09-23-2021		Bond Account created Total Due: 300.00
09-23-2021		Bond Posted 300.00
09-24-2021	44	**** PRIVATE **** Filed: Return of Electronic Notification
10-01-2021	45	**** PRIVATE **** Filed: Motion To Dismiss Respondents Notice of Appeal
10-01-2021	46	**** PRIVATE **** Filed: Return of Electronic Notification
10-05-2021	47	**** PRIVATE **** Filed: Order (Proposed) Granting Petitioners Motion to Dismiss Respondents Notice of Appeal

10-05-2021 48 **** PRIVATE **** Filed: Return of Electronic Notification

10-13-2021 49 **** PRIVATE **** Filed: Other - Not Signed Order (Proposed) Granting Petitioners Motion to Dismiss Respondents Notice of Appeal

10-13-2021 Note: The Court of Appeals will determine the sufficiency of the notice.

10-13-2021 50 **** PRIVATE **** Filed: Return of Electronic Notification

12-30-2021 51 **** PRIVATE **** Filed: Notice of Ex Parte Communication

12-31-2021 52 **** PRIVATE **** Filed: Return of Electronic Notification

01-05-2022 55 **** PRIVATE **** Filed: Notice of Appeal Confirmation of Receipt

01-05-2022 53 **** PRIVATE **** Filed: Court of Appeals Notice

01-07-2022 54 **** PRIVATE **** Filed: Return of Electronic Notification

01-08-2022 56 **** PRIVATE **** Filed: Return of Electronic Notification

01-13-2022 58 **** PRIVATE **** Filed: Return of Electronic Notification

01-13-2022 59 **** PRIVATE **** Filed: TRANSADMIN TRANSCRIPT for Hearing 08-16-2021

01-14-2022 60 **** PRIVATE **** Filed: Return of Electronic Notification

01-20-2022 61 **** PRIVATE **** Filed: Judgment Roll and Index and Clerk's Certificate

01-20-2022 Note: Email judgment roll and index and clerk's certificate to the Court of Appeals. Uploaded record into Google under 4th District.

01-21-2022 62 **** PRIVATE **** Filed: Return of Electronic Notification

05-17-2022 63 **** PRIVATE **** Filed: Order Affirming Civil Stalking Injunction

05-25-2022 64 **** PRIVATE **** Filed: Return of Electronic Notification

07-08-2022 65 **** PRIVATE **** Filed: Remittitur

07-09-2022 66 **** PRIVATE **** Filed: Return of Electronic Notification

07-11-2022 Trust Account created Total Due: 300.00

07-11-2022 Bond Transfer/Refunded -300.00

07-11-2022 Bail/Bond Refund Payment Received: 300.00

07-12-2022 Bail/Bond Refund Check # 66936 Trust Payout: 300.00

07-13-2022 Note: Notified Christopher that the check is ready for pickup.

10-08-2024 Fee Account created Total Due: 4.50

10-08-2024 Fee Account created Total Due: 12.00

10-08-2024 CERTIFIED COPIES Payment Received: 4.50

10-08-2024 CERTIFICATION Payment Received: 12.00

01-06-2025 Judge KASEY L WRIGHT assigned.